

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PASHONA DAVY and DONOVAN DAVY,

SUMMONS

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD OFFICER HUGO
GUTIERREZ, SHIELD NO. 10892, NYPD OFFICER
TOMAS M. KROHN, SHIELD NO. 26766, NYPD
OFFICER ORAZIO BOCCADIFUOCO, SHIELD NO.
3132, and NYPD POLICE OFFICERS JOHN DOE
NUMBERS 1-10,Plaintiff designates Kings
County as the place of trial.

Defendants.

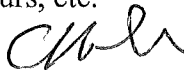
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 8, 2021

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiffs
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER HUGO GUTIERREZ, SHIELD NO. 10892, 67th Precinct;
2820 Snyder Avenue, Brooklyn, NY 11226

NYPD OFFICER TOMAS M. KROHN, SHIELD NO. 26766, Gun Violence
Support Division Z1; 860A Remsen Avenue, Brooklyn, NY 11236

NYPD OFFICER ORAZIO BOCCADIFUOCO, SHIELD NO. 3132, 67th Precinct,
Detective Squad; 2820 Snyder Avenue, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

PASHONA DAVY and DONOVAN DAVY,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER HUGO
GUTIERREZ, SHIELD NO. 10892, NYPD OFFICER
TOMAS M. KROHN, SHIELD NO. 26766, NYPD
OFFICER ORAZIO BOCCADIFUOCO, SHIELD NO.
3132, and NYPD POLICE OFFICERS JOHN DOE
NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs PASHONA DAVY and DONOVAN DAVY, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 4th, 2021, at approximately 10:00 p.m., Plaintiffs PASHONA DAVY and DONOVAN DAVY, while lawfully inside their home at 256 East 37th Street in Brooklyn, New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiffs were subjected to excessive force and were shoved, slammed, and subject to negligent treatment by the defendant officers, causing them to suffer physical, mental, and emotional injury. Plaintiff Donovan Davy was then unlawfully imprisoned at the 67th Precinct Police Station for approximately 12 hours until he was released with no charges. Plaintiff Pashona Davy was unlawfully imprisoned for approximately 48 hours until she was brought before a Judge and released on her own recognizance. Plaintiffs were denied the right to due process and a fair trial for these false charges, which were dismissed against Pashona Davy on March 16, 2021. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, assaulted, battered, falsely arrested, falsely imprisoned, and denied plaintiffs the right to due

process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff PASHONA DAVY (“Ms. Davy”) is a resident of the state of New York.

3. Plaintiff DONOVAN DAVY (“Mr. Davy”) is a resident of the state of New York.

4. NYPD OFFICER HUGO GUTIERREZ, SHIELD NO. 10892, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. NYPD OFFICER HUGO GUTIERREZ, SHIELD NO. 10892, is and was at all times relevant herein assigned to the 67th Precinct.

6. NYPD OFFICER HUGO GUTIERREZ, SHIELD NO. 10892, is being sued in his individual and official capacities.

7. NYPD OFFICER TOMAS M. KROHN, SHIELD NO. 26766, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

8. NYPD OFFICER TOMAS M. KROHN, SHIELD NO. 26766, is and was at all times relevant herein assigned to the 67th Precinct.

9. NYPD OFFICER TOMAS M. KROHN, SHIELD NO. 26766, is being sued in his individual and official capacities.

10. NYPD OFFICER ORAZIO BOCCADIFUOCO, SHIELD NO. 3132, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

11. NYPD OFFICER ORAZIO BOCCADIFUOCO, SHIELD NO. 3132, is and was at all times relevant herein assigned to the 67th Precinct.

12. NYPD OFFICER ORAZIO BOCCADIFUOCO, SHIELD NO. 3132, is being sued in his individual and official capacities.

13. NYPD Police Officers John Doe Numbers 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

14. NYPD Police Officers John Doe Numbers 1-10 were at all times relevant herein, assigned to the 67th Precinct.

15. NYPD Police Officers John Doe Numbers 1-10 are being sued in their individual and official capacities.

16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed timely Notices of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

19. In accordance with New York State law and General Municipal Law Section 50, plaintiffs testified at a hearing held pursuant to General Municipal Law Section 50-H on February 25, 2021 (Mr. Davy), and May 17, 2021 (Ms. Davy).

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. On January 4th, 2021, at approximately 10:00 P.M., Plaintiffs were lawfully present inside their home at 256 East 37th Street, Apartment 2H, in Brooklyn, New York, when

the defendant police officers unlawfully stopped, questioned, searched, assaulted, battered, and falsely arrested Plaintiffs without probable cause or legal justification.

24. On the date of the relevant incident, Ms. Pashona Davy was approximately four (4) months pregnant.

25. On the evening of January 4th, Mr. and Ms. Davy were both inside their apartment located at 256 East 37th Street, where they live with their parents and Ms. Davy's young son.

26. Mr. Davy had just returned home from his shift as a TSA Officer, and heard a knock on the door; unable to get it himself, he called for his sister, Ms. Davy, to answer the door.

27. Upon opening the door slightly to see who was outside, Ms. Davy observed several defendant officers in the hall outside the apartment. Without any explanation, one of the officers wedged his foot into the opening of the door, and approximately 15 uniformed officers forced their way into the small apartment.

28. Defendant officers asked Mr. Davy to provide identification and began to question him, and Mr. Davy complied fully.

29. While speaking with the officers, Mr. Davy noticed some of the defendant officers begin to roughly handle his sister, shoving her and throwing her down on her stomach.

30. Mr. Davy asked the officers not to handle his sister so roughly, and repeatedly told them she was pregnant; when the rough treatment continued, Mr. Davy began recording the interaction on his phone.

31. It was at this time that defendant officers began arresting the plaintiffs, first Ms. Davy and then her brother, Mr. Davy.

32. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

33. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

34. Plaintiffs did not resist arrest.

35. Plaintiffs were subject to an illegal pat-down search and no illegal contraband was found.

36. At the time of her arrest, Ms. Davy was wearing minimal clothing, and in the process of being shoved and thrown around by defendant officers, her clothes became tangled and she was exposed to her family members and nearby witnesses, causing further humiliation.

37. Ms. Davy's family begged officers to allow her to get warm clothes before going outside, as she was not dressed for the January weather. Only after placing Ms. Davy in the back of a police vehicle in handcuffs did the officers allow her family members to retrieve warm clothes for her.

38. Both Plaintiffs were then transported in handcuffs against their will to the 67th Precinct, where they were each unlawfully fingerprinted, photographed, searched, and placed in a holding cell.

39. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from either Plaintiff or from a location that was in either Plaintiffs' possession, custody, or control.

40. The defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime.

41. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that the plaintiffs were guilty of Resisting Arrest and Obstructing Governmental Administration.

42. On January 5th, 2021, after approximately 12 hours in custody, Mr. Davy was released from custody at the 67th Precinct with no charges; the Kings County District Attorney declined to prosecute as Mr. Davy committed no crime.

43. Ms. Davy remained in police custody at the 67th Precinct and was denied food even though she complained to defendant officers that she was hungry and felt unwell; at one point an NYPD officer even brought food to her long enough for her to see it, and took it away.

44. Ms. Davy developed a migraine headache and began to vomit in her cell.

45. On January 5th, 2021, after approximately 24 hours in custody and without food, Ms. Davy was transported to Kings County Hospital to be treated and given a sonogram to confirm her pregnancy.

46. On January 6th, 2021, Ms. Davy was transported to Kings County Central Bookings where she appeared in criminal court and was finally released on her own recognizance.

47. Directly upon her release, Ms. Davy was treated at SUNY Downstate Hospital for dehydration and infection as a result of her prolonged time in unlawful custody.

48. The charges which were falsely made against Ms. Davy by the defendant officers were dismissed and sealed on March 16, 2021.

49. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiffs the right to due process and a fair trial.

50. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' rights to a fair trial by the individually named defendants caused Plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

51. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

60. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

62. The conduct of defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

63. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

66. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop, and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

68. Defendants lacked probable cause to search Plaintiffs.

69. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Assault

73. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

75. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Battery

79. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. Defendants, their agents, servants, and employees, acting within the scope of their employment, willfully and maliciously battered Plaintiffs when they, in a hostile and/or offensive manner, shoved them and slammed them into the ground, with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery.

81. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

85. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

89. In withholding/creating false evidence against Plaintiffs PASHONA DAVY and DONOVAN DAVY, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, Plaintiffs PASHONA DAVY and DONOVAN DAVY sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights

94. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The use of excessive force by defendants by, amongst other things, forcing their way into their apartment and tightly handcuffing them, causing injury, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

97. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, PASHONA DAVY and DONOVAN DAVY. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

99. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

103. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants,

individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

105. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

ELEVENTH CAUSE OF ACTION

Failure to Intervene

106. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights, had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

108. Defendants failed to intervene to prevent the unlawful conduct described herein.

109. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to unlawful search, battery, and other physical constraints.

110. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

112. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TWELFTH CAUSE OF ACTION

Negligence

114. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth herein.

115. Defendants owed a duty of care to the plaintiffs.

116. To the extent defendants claim that the injuries to the plaintiff by the defendant officers was unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by ignoring both Mr. and Ms. Davy's requests for gentle treatment due to Ms. Davy's pregnancy, as well as denied Ms. Davy food for a prolonged period of time, causing her physical and emotional discomfort, pain, and distress.

117. As a direct and proximate result of these acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

118. All of the foregoing occurred without any fault or provocation on the part of the plaintiffs.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

122. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs PASHONA DAVY and DONOVAN DAVY demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 29, 2021

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiffs
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER HUGO GUTIERREZ, SHIELD NO. 10892, 67th Precinct; 2820
Snyder Avenue, Brooklyn, NY 11226

NYPD OFFICER TOMAS M. KROHN, SHIELD NO. 26766, Gun Violence Support
Division Z1; 860A Remsen Avenue, Brooklyn, NY 11236

NYPD OFFICER ORAZIO BOCCADIFUOCO, SHIELD NO. 3132, 67th Precinct,
Detective Squad; 2820 Snyder Avenue, Brooklyn, NY 11226

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
July 8, 2021



CAITLIN ROBIN